

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

|                                                           |   |                         |
|-----------------------------------------------------------|---|-------------------------|
| -----X                                                    | : |                         |
| STEFAN STEFANOV,                                          | : |                         |
|                                                           | : | <b><u>COMPLAINT</u></b> |
| Plaintiff,                                                | : | Index No.: 151211/2016  |
| -against-                                                 | : |                         |
| THE CITY OF NEW YORK, NYC POLICE DEPT.,                   | : |                         |
| POLICE OFFICER LUIS PEREZ, Shield No.: 21352,             | : |                         |
| Individually and in his Official Capacity, UNIDENTIFIED : | : |                         |
| OFFICERS OF THE NYC POLICE DEPT., Individually            | : |                         |
| and in Their Official Capacity,                           | : |                         |
| Defendants.                                               | : |                         |
| -----X                                                    | : |                         |

Plaintiff, appearing by his attorney, BARKET MARION EPSTEIN & KEARON, LLP,  
hereby alleges against the Defendants as follows:

**PARTIES**

1. Plaintiff Stefan Stefanov (hereinafter "the Plaintiff" or "Mr. Stefanov") is a resident of the State of New Jersey.
2. At all times hereinafter mentioned, the defendant City of New York was and still is a municipal corporation duly organized and existing under the laws of the State of New York.
3. Upon information and belief, at all relevant times the defendant City of New York, its agents, servants and employees, operated, maintained and controlled THE NEW YORK CITY POLICE DEPARTMENT (NYPD), including all the police officers thereof.
4. Upon information and belief, at all relevant times, defendant LUIS PEREZ, Shield No.: 21352, was employed by the defendant City of New York and defendant New York City Police Department, as a police officer in New York, New York.
5. Upon information and belief, at all relevant times, defendants UNIDENTIFIED

OFFICERS OF THE NYC POLICE DEPT. were employed by the defendant City of New York and defendant New York City Police Department, as a police officers in New York, New York.

### **STATEMENT OF FACTS**

6. On the morning of October 19, 2014, Mr. Stefanov was alone in his car in downtown Manhattan, driving home to New Jersey.

7. As he proceeded on the Lower East Side toward the Holland Tunnel, he was pulled over by members of the Defendant NYC Police Dept., including (but not limited to) Defendant Luis Perez.

8. Defendant Perez approached Mr. Stefanov's window and asked him if he had been drinking. Mr. Stefanov indicated he had consumed a drink with dinner, which, by this time, was approximately ten hours prior.

9. Defendant Perez then had Mr. Stefanov submit to two roadside breath tests, said Mr. Stefanov was on the "border," and brought him back to the police station for further testing.

10. At the police station, Mr. Stefanov submitted to a chemical breath test. It reported a blood alcohol content of 0.04%—well within the legal limit.

11. He was asked to submit to speech, balance, walk-and-turn, one-leg-stand, and finger-to-nose testing. His speech was reported by police as "clear," his balance was "steady," his walking was "steady," his turning was "steady," his one-leg-stand was "steady," and his finger-to-nose was "accurate."

12. Nevertheless, Mr. Stefanov was charged with driving under the influence of alcohol in violation of VTL 1192(1) and (3).

13. After approximately five hours, at or after 10AM that Sunday morning, Mr. Stefanov was transported to Central Booking, terrified. And he waited there for approximately 15 additional hours, until 1AM Monday morning, before seeing a judge.

14. Mr. Stefanov was arraigned that morning, October 20<sup>th</sup>, 2014, after which his case was adjourned for approximately one month. During that intervening time, he hired private counsel for \$7,500, and the case against him was dismissed at his next court appearance.

15. On January 14, 2015, within 90 days after the claim herein accrued, Mr. Stefanov filed with Defendants a written Notice of Claim setting forth the time, place, nature and manner in which the claim arose.

16. A hearing pursuant to Section 50-H of the General Municipal Law was thereafter demanded and held on September 30, 2015.

17. More than 30 days elapsed from the date that Plaintiff's Notice of Claim was filed and Defendants did not make payment to Mr. Stefanov to compensate him for his injuries.

18. On February 12, 2016, Plaintiff filed a Summons with Notice for the present action; and on May 23, 2016, Plaintiff received Defendant's demand for a Complaint.

### **FIRST CAUSE OF ACTION: FALSE ARREST**

#### **Pursuant to 42 U.S.C. § 1983**

19. Mr. Stefanov hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

20. His rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. § 1983, in that Mr. Stefanov was illegally seized.

21. The said acts were caused by the defendants without any legal justification.

22. The defendants confined Mr. Stefanov, the defendants intended to confine Mr. Stefanov, Mr. Stefanov was conscious of the confinement, Mr. Stefanov did not consent to the confinement, and the confinement was not otherwise privileged.

23. The said seizure and unlawful detention was caused by the defendants acting individually and/or acting together but nevertheless acting without authority of the law and without any legal basis or probable cause to believe that Mr. Stefanov was in fact guilty of crimes.

24. The seizure and unlawful detention was caused by the defendants before any formal proceeding had begun and before there was probable cause to arrest.

25. By reason of the unlawful seizure, Mr. Stefanov incurred physical, emotional and pecuniary harms, suffered humiliation, mental anguish, embarrassment, damage to his reputation in the community and he was otherwise injured.

26. By reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at trial and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

## **SECOND CAUSE OF ACTION: FALSE IMPRISONMENT**

### **Pursuant to New York State Law**

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

28. Mr. Stefanov's rights have been violated under New York State law, in that he was falsely imprisoned by the defendants.

29. The false imprisonment was caused by the defendants, their agents, servants and employees, without any legal justification, to wit, without probable cause, and the defendants confined the plaintiff, defendants intended to confine plaintiff, plaintiff was conscious of the

confinement, plaintiff did not consent to confinement, and confinement was not otherwise privileged.

30. Because of the unlawful seizure, and detention, the plaintiff incurred physical, emotional and pecuniary harms, suffered humiliation, mental anguish, embarrassment, damage to his reputation in the community and he was otherwise injured.

31. By reason of the aforesaid, the plaintiff has been damaged in an amount to be determined by a jury.

### **THIRD CAUSE OF ACTION: MALICIOUS PROSECUTION**

#### **Pursuant to 42 U.S.C. § 1983**

32. Mr. Stefanov hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

33. The defendants, despite knowing that probable cause did not exist to arrest and prosecute Mr. Stefanov, acted individually and in concert to cause Mr. Stefanov to be arrested and prosecuted. The defendants' conduct violated Mr. Stefanov's rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution to be free from unreasonable search and seizure.

34. Specifically, defendants knew or in the absence of their deliberate and reckless indifference to the truth, should have known that probable cause did not exist to arrest and prosecute Mr. Stefanov.

35. The defendants' acts were performed by the defendants with deliberate and reckless disregard for the truth and with malice.

36. In fact, the charges against Mr. Stefanov were dismissed. The prosecution was terminated in Mr. Stefanov's favor.

37. Defendants' actions to deprive Mr. Stefanov of his liberty without probable cause were in violation of clearly established constitutional law and no reasonable law enforcement authority would have believed that the defendants' actions were lawful.

38. As a direct and proximate result of defendants' actions, Mr. Stefanov was wrongly prosecuted and suffered injuries and damages as set forth herein.

39. That by reason of the malicious prosecution, Mr. Stefanov incurred physical, emotional and pecuniary harms, suffered humiliation, mental anguish, embarrassment, damage to his reputation in the community and he was otherwise injured.

40. By reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at trial and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

#### **FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION**

##### **Pursuant to New York State Law**

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

42. Plaintiff's rights have been violated pursuant to the common law of the state of New York via a malicious prosecution.

43. The defendants, despite knowing that probable cause did not exist to arrest and prosecute Mr. Stefanov, acted individually and in concert to cause Mr. Stefanov to be arrested and prosecuted. The defendants' conduct violated Mr. Stefanov's rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution and the New York State Constitution to be free from unreasonable search and seizure.

44. Specifically, defendants knew or in the absence of their deliberate and reckless indifference to the truth, should have known that probable cause did not exist to arrest and prosecute Mr. Stefanov.

45. The defendants' acts were performed by the defendants with deliberate and reckless disregard for the truth and with malice.

46. In fact, the charges against Mr. Stefanov were dismissed. The prosecution was terminated in Mr. Stefanov's favor.

47. Defendants' actions to deprive Mr. Stefanov of his liberty without probable cause were in violation of clearly established state and constitutional law and no reasonable law enforcement authority would have believed that the defendants' actions were lawful.

48. As a direct and proximate result of defendants' actions, Mr. Stefanov was wrongly prosecuted and suffered injuries and damages as set forth herein.

49. By reason of the malicious prosecution, Mr. Stefanov incurred physical, emotional and pecuniary harms, suffered humiliation, mental anguish, embarrassment, damage to his reputation in the community and he was otherwise injured.

50. By reason of the aforesaid, the plaintiff has been damaged in an amount to be determined by a jury.

#### **FIFTH CAUSE OF ACTION: *RESPONDEAT SUPERIOR***

##### **Pursuant to New York State Law**

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

52. At all times relevant to this complaint, Defendant Perez and the Unidentified Police Officers acted as agents of, and in the scope of their employment with, defendant New

York City Police Department and defendant City of New York. The conduct by which the Identified and Unidentified Police Officers committed the torts of false imprisonment and malicious prosecution were undertaken while defendants were carrying out their routine function as police officers and while defendants were engaged in such conduct as would have been reasonably expected by, and was in fact foreseen by, their employer. The City of New York and the New York City Police Department are liable for the individually named defendants' state law torts of false arrest and malicious prosecution under the doctrine of *respondeat superior*.

53. By reason of the malicious prosecution, Mr. Stefanov incurred physical, emotional and pecuniary harms, suffered humiliation, mental anguish, embarrassment, damage to his reputation in the community and he was otherwise injured.

54. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined by a jury.

### **DAMAGES**

55. The actions of the defendants deprived plaintiff Mr. Stefanov of his civil rights under the Fourth and Fourteenth Amendments to the United States Constitution, and under the laws for New York.

56. The unlawful, intentional, willful, deliberately indifferent, reckless, and/or bad-faith acts and omissions of the defendants caused Mr. Stefanov to be wrongly seized, incarcerated and maliciously prosecuted for crimes he did not commit.

57. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, and/or bad-faith acts and omissions of the defendants caused Mr. Stefanov the following injuries and damages, which were foreseeable to the defendants at the time of their acts and omissions,



and which continue to date into the future: physical, emotional and pecuniary harms, humiliation, mental anguish, embarrassment, damage to his reputation in the community and other injury.

58. Included in these damages, without limitation, are approximately **20 hours** of unlawful confinement; **\$7,500** in attorneys' fees for a case that never should have been brought; a case remaining on the criminal docket for approximately **one month** before its eventual dismissal; economic and pecuniary damages; and loss of personal/vacation time from work.

59. All the acts and omissions committed by the defendants described herein for which liability is claimed were done intentionally, unlawfully, maliciously, wantonly, recklessly, negligently and/or with bad faith, and said acts meet all of the standards for imposition of punitive damages.

**WHEREFORE**, the Plaintiff, Mr. Stefanov prays as follows:

A. That the Court award compensatory damages to him and against the defendants jointly and severally, in an amount to be determined at trial;

B. That the Court award punitive damages to him, and against all non-municipal defendants, in an amount, to be determined at trial, that will deter such conduct by defendants in the future;

C. For a trial by jury;

D. For a pre-judgment and post-judgment interest and recovery of his costs, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988 for all 42 U.S.C. § 1983 claims; and

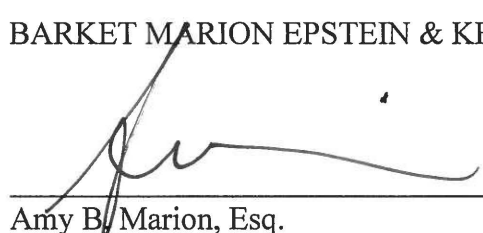
E. For any and all other relief to which he may be entitled.

Dated: Garden City, New York  
June 16, 2016

Respectfully submitted,

BARKET MARION EPSTEIN & KEARON, LLP

By:



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